Purchase Order

Purchase Order No. ESPUR000085
Date 03/02/2022
Vendor ID V0149

TO	SHIP TO
ADN Comunicacio SLU C/Industria n127 2a Planta Barcelona 08025	GW Pharma (Spain) S.L. Paseo de Recoletos 37-41, 1º Madrid 28004
	BILL TO
	GW Pharma (Spain) SL Paseo de Recoletos 37-41, 1º Madrid 28004 Reg No : VAT No : B88290879 Email : InvoicesES@gwpharm.com

ORDER DATE	CURRENCY	TERMS	REQUISITIONER
03/02/2022	EUR	30 Days	Covadonga Alonso

ORDER DATE	LINE	DESCRIPTION	QUANTITY	UNIT	DATE REQUIRED	PRICE	EXT. PRICE
03/02/2022	1	Local adaptation of the Epilepsy Dialogs international material	1.00	Each	03/02/2022	995.85	995.85

TOTAL **995.85**

Terms and Conditions of Purchase

1.DEFINITIONS
In these Terms and Conditions (Conditions) the following expressions shall have the following meaning:
1.1"Buyer" shall mean GW Pharma Ltd.
1.2"Contract" means the contract between the Buyer and the Seller consisting of the Order, these Conditions, and any other documents (or parts thereof) specified in the Order.
1.3"Equipment" means all plant, machines, tools and other equipment used by the Seller in connection with the Contract.
1.4"Goods" means the articles or things or any of them described in the Order for supply to the Buyer.
1.5"Material" means all documents, raw materials, excipients, reagents and other tangible items (excluding Equipment) supplied or loaned by the Buyer to the Seller in connection with the Contract.
1.6"Order" means the order placed by the Buyer for the supply of the Goods and/or the performance of the Services.
1.7"Seller" shall mean the person, firm or company to whom the Order is addressed.
1.8"Services" means the services (if any) described in the Order to be undertaken by the Seller.
1.9"Specifications" means the technical description or other requirements (if any) of the Goods or the Services contained or referred to in the Order.

2.GENERAL
2.1These Conditions shall be deemed to be incorporated in the Contract and in the case of any inconsistency with any letter incorporating or referring to these Conditions or any quotation letter or form of contract sent by the Seller to the Buyer or any other communication between the Seller and the Buyer whatever may be their respective dates, the provisions of these Conditions shall prevail unless expressly otherwise agreed or varied in writing and signed on behalf of the Buyer. Any concession made or latitude allowed by the Buyer to the Seller shall not affect the strict rights of the Buyer under the Contract. If in any particular case any of these Conditions shall be held to be invalid or shall not apply to the Contract the other Conditions shall continue in full force and effect. No variation to the order or these Conditions shall be binding unless expressly agreed in writing by the Buyer and signed on its behalf.
2.2These Conditions apply to the Contract to the exclusion of any other terms that the Seller seeks to impose or incorporate or which are implied by trade, custom, practice or course of dealing.
2.3Each Order shall constitute a separate and severable Contract.
2.4The Seller shall at all times comply with any codes of conduct provided by the Buyer to the Seller. At the Seller's request any Contract may be supplemented by the terms of a technical agreement, in which case the technical agreement shall form a part of the Contract.
2.5The Seller warrants that: (i) its responses to the Buyer's due diligence questionnaire are complete and accurate; and (ii) neither the Seller nor any of its officers, employees (a) has been convicted of any offence involving slavery and human trafficking; and (b) has, to the best of its knowledge, been or is the subject of any investigation, inquiry or enforcement proceedings by any governmental, administrative or regulatory body regarding any offence or alleged offence of or in connection with slavery and human trafficking; and (iii) it has implemented due diligence procedures for its own suppliers, subcontractors and other participants in its supply chains, to ensure that there is no slavery or human trafficking in its supply chains.

3.ACKNOWLEDGEMENT
3.1The Buyer shall be bound by its Order only if:
3.1.1it is placed on its official order form; and
3.1.2the Seller accepts in writing within 14 days of the date of the Order.
3.2The Contract shall come into existence when the Seller accepts the Order.

4.QUALITY AND DESCRIPTION
4.1Without prejudice to any other rights the Buyer may have, the Seller warrants that the Goods and Services shall:
4.1.1conform as to quantity, quality and description (including as described in the Specifications) with the particulars stated in the Contract.
4.1.2be of sound materials and workmanship.
4.1.3be provided with due care and skill.
4.1.4be of merchantable and satisfactory quality and fit for the purpose for which they are required as indicated in the Contract either expressly or by implication.
4.1.5comply with all relevant legislation including, but not limited to, health and safety legislation.
4.2The Seller shall comply with the Buyer's reasonable instructions during manufacture, processing, storage and delivery of the Goods and the provision of the Services.

5.AUDIT, TESTING, SAMPLES
5.1If so required by the Buyer, the Seller shall submit samples of the Goods or Services for the Buyer's approval before the bulk of the Goods are delivered or before the bulk of the Services are performed (as the case may be). Such samples should be marked for identification by the Seller and will be retained by the Buyer until the Services are completed or the Goods have been delivered.
5.2The Buyer or its representative shall be entitled to audit and test the Goods during manufacture, processing or storage and shall also be entitled during manufacture to inspect progress against the plan agreed by the parties. If the Buyer exercises this right the Seller, at its own expense, shall provide or shall procure all such facilities as may be reasonably required by the Buyer, including access to the premises of any sub-contractor. Notwithstanding any such inspection or testing, the Seller shall remain fully responsible for the Goods and any such inspection or testing shall not diminish or otherwise affect the Seller's obligations under the Contract.
5.3If, as a result of any inspection or test under paragraph 5.2, of these Conditions, the Buyer or its representative is of the reasonable opinion that the Goods or Services do not comply with the Contract, or are unlikely on completion of manufacture or processing to comply, the Buyer shall inform the Seller accordingly in writing and the Seller shall take such steps as may be necessary to ensure such compliance.

6.DELIVERY
6.1The Goods shall be properly packed and secured in such a manner as to reach their destination in good condition under normal conditions of transport and be capable of long term storage. Upon receipt the Goods shall be delivered by the Seller carriage paid at the time they are despatched for delivery and the Services shall be performed at the place or places and in the manner specified in the Contract or as subsequently agreed in writing by the parties. Time of performance of the Seller's obligations hereunder shall be of the essence of the Contract.

6.2Where requested, the Seller will provide a certificate of conformance with each delivery.
6.3The Buyer shall not be under any obligation to return or pay for returnable packaging, packing cases, skids, drums and other re-usable articles used for packaging the Goods.
6.4If the Goods are not delivered or the Services not performed within the time specified in the Contract the Buyer shall be entitled to terminate the Contract forthwith.
6.5Without prejudice to any other of the Buyer's rights, Goods not despatched in time to reach the Buyer by the date specified in the Contract shall, at the Buyer's option, be delivered by express service at the Seller's expense.
6.6Unless otherwise agreed in writing by the Buyer all deliveries must be made to the Buyer between 8.30am and 3.00pm Monday to Thursday, no deliveries on a Friday unless by prior written agreement.
6.7The Seller shall not deliver the Goods in instalments without the Buyer's prior written consent. If the Goods are to be delivered or the Services are to be performed by instalments the Contract shall be treated as a single Contract and not severable.
6.8If the Seller delivers less than 90% or more than 110% of the quantity of the Goods ordered, the Buyer may reject the Goods: and any rejected Goods shall be returnable at the Seller's risk and expense. If the Seller delivers more or less than the quantity of Goods ordered, and the Buyer accepts the delivery, a pro rata adjustment shall be made to the invoice of the Goods.

7.STORAGE
If for any reason the Buyer is unable to accept delivery of the Goods at the time when the Goods are due and ready for delivery the Seller shall, if its storage facilities permit, store the Goods, safeguard them and take all reasonable steps to prevent their deterioration until their actual delivery.

8.MATERIAL AND EQUIPMENT
8.1The Equipment and the Material shall be maintained in good condition by the Seller and the Seller shall indemnify the Buyer against any loss or damage to Equipment or Material supplied by the Buyer whilst the same are in the possession or control of the Seller.
8.2The Material and the Equipment supplied by the Buyer shall only be used for the purpose of manufacturing and supplying the Goods or performing the Services for the Buyer and shall remain the absolute property of the Buyer at all times.
8.3At the request of the Buyer, the Seller shall promptly return the Buyer's Material and the Buyer's Equipment to the Buyer.

9.PASSING OF PROPERTY AND RISK
9.1Risk of damage to or loss of the Goods shall pass to the Buyer on delivery to the Buyer in accordance with the Contract.
9.2The property in the Goods shall pass to the Buyer at the latest on the date of notification by the Seller that the Goods are due and ready for delivery but without prejudice to any right of rejection which may accrue to the Buyer whether under these Conditions or otherwise.

10.REJECTION
10.1All Goods and other items supplied by the Seller will be inspected by the Buyer within a reasonable period following delivery in accordance with the Buyer's procedures. Where Goods are supplied in batches, if any batch is rejected by the Buyer then, without prejudice to any other of its rights, the Buyer shall have the option at its absolute discretion:
10.1.1to return the consignment to the Seller; or
10.1.2to sort the entire consignment and the Seller shall reimburse the Buyer the costs thereof.
10.2The Buyer shall not be deemed to have accepted any Goods until the Buyer has had a reasonable time to inspect them following delivery, or if later, within a reasonable time after any latent defect in the Goods has become apparent.
10.3Without prejudice to any of its other rights, the Buyer may, by notice in writing, to the Seller reject any or all of the Goods which are found not to be in accordance with the Contract or in respect of which the Seller has failed to comply with any of its obligations under the Contract.
10.4The Buyer shall when giving notice of rejection specify the reason for rejection and the Seller shall remove such Goods at its risk and expense. In such case the Seller shall within a reasonable time replace such rejected Goods with Goods which are in all respects in accordance with the Contract or credit the Buyer with the invoice price thereof at the Buyer's option. These Conditions will apply to any replaced Goods.
10.5Any money paid by the Buyer to the Seller in respect of any rejected Goods not replaced by the Seller within a reasonable time, together with any additional expenditure over and above the Contract price reasonably incurred by the Buyer in obtaining other goods in replacement, shall be paid by the Seller to the Buyer within seven days of a demand by the Buyer for such payment.

11.PRICE AND PAYMENT
11.1The price of the Goods or Services will be the price set out in the Contract.
11.2All invoices for properly rendered services and properly produced Goods shall be paid within 30 days following receipt. The Seller shall send to the Buyer on the days of despatch for each consignment of Goods advice(s) of despatch and invoice(s) as may be indicated in the Contract. The Seller shall mark clearly the Buyer's order number, the Buyer's item number, quantity, batch number (where Goods are supplied in batches), description, the Seller's name and manufacturing date on the relevant consignment package(s), packing notes, advice notes, invoices, monthly statements and all other correspondence relating thereto.
11.3The prices stated are exclusive of Value Added Tax but include the costs of packaging, insurance and carriage of the Goods. No extra charges shall be effective unless agreed in writing and signed by the Buyer.
11.4If the Buyer fails to make any payment due to the Seller under the Contract by the due date for payment then the Seller shall be entitled to charge interest on the overdue amount at the rate of 3% per annum above the Bank of England's base lending rate from time to time. Such interest shall accrue on a daily basis from the due date until the date of actual payment.

12.STATUTORY REQUIREMENTS
12.1The Seller warrants that the design, construction and quality of all Goods to be supplied under the Contract and the quality of the Services will comply in all respects with all statutory requirements and regulations or other instrument having the force of law which may be in force at the time.
12.2The Seller warrants it has all licenses, permits and other authorisations required to provide the Goods and Services under the Contract.

13.ASSIGNMENT AND SUB-CONTRACTING
13.1The Seller shall not, without prior written consent of the Buyer, assign, transfer or sub-contract the Contract or any of its rights or obligations thereunder to any other person, firm or company.
13.2The Seller agrees and acknowledges that the Buyer may assign, transfer or sub-contract the Contract, or any of its rights or obligations thereunder, to any person, firm or company without the prior consent of the Seller.

14.BANKRUPTCY OR LIQUIDATION

14.1If: (i) the Seller being an individual (or when the Seller is a firm, any partner in that firm) shall at any time become bankrupt, or shall have an application for a receiving order or administration order made against it or shall make any composition or arrangement with or for the benefit of its creditors; or (ii) the Seller being a company shall pass a resolution or the Court shall make an order that the company shall be wound up (not being a members winding up for the purpose of reconstruction or amalgamation) or if a receiver or administrative receiver or administrator shall be appointed of the whole or part of its assets or if it shall make any composition or arrangement with or for the benefit of its creditors then the Buyer shall be at liberty:
14.1.1to cancel the Contract summarily by notice in writing without compensation to the Seller; or
14.1.2to give any such receiver or liquidator or other person the option of carrying out the Contract.
14.2The exercise of any of the rights granted by the Buyer under paragraph 14.1 hereof shall not prejudice or affect any right of action or remedy which shall have accrued or shall accrue thereafter to the Buyer.

15.INDEMNITY
15.1The Seller shall indemnify the Buyer against all claims, demands, costs, charges, damages, losses and expenses suffered or incurred by the Buyer and/or for which it may be liable to any third party due to, arising from or in connection with:
15.1.1the negligent or wilful acts or omissions of the Seller, its servants, agents or contractors in supplying, delivering and installing the Goods or performing the Services;
15.1.2the breach of any provision of the Contract by the Seller;
15.1.3any defects in the workmanship, materials or design of the Goods or their packaging;
15.1.4any infringement or alleged infringement of any Intellectual Property Rights for or relating to the Goods or the Services unless such infringement has occurred directly as a result of the Specifications required by the Buyer.
15.2The Seller undertakes to maintain adequate insurance cover with a reputable insurance company in respect of any liability under paragraph 15.1 of this Condition and if so required at any time produce the policy of insurance and the receipt for the current premium to the Buyer for its inspection.
15.3This Condition 15 survives the expiry or earlier termination of the Contract.

16.FORCE MAJEURE
The performance by a party of any of its obligations under the Contract shall be deemed suspended in so far as such performance is prevented or hindered by any circumstances beyond its reasonable control.

17.CANCELLATION
17.1The Buyer shall have the right to vary the quantity of Goods ordered or the nature of the Services performed and to cancel future supplies of Goods or Services upon giving to the Seller not less than one month's written notice thereof. The Buyer shall have no liability other than to pay for the Goods delivered or Services performed prior to the expiration of the notice and for any forward materials purchased with the Buyer's consent. Any such forward materials will then become the property of the Buyer and should be delivered in accordance with these Conditions.
17.2Notwithstanding paragraph 17.1 of this Condition, if the Seller shall be in default or commit any breach of its obligations hereunder then the Buyer without prejudice to any other rights or remedies may forthwith by written notice terminate each and every Contract between the Buyer and the Seller without incurring any liability by reason of such termination.
17.3Upon such termination the rights and liabilities of the Buyer and the Seller shall be the same as if the Seller had repudiated the Contract and the Buyer had by its notice of termination elected to accept such repudiation. Any termination or suspension of the Order shall not prejudice any rights which may have accrued to either party hereunder.

18.CONFIDENTIALITY AND INTELLECTUAL PROPERTY
18.1A party ("Receiving Party") shall keep in strict confidence all technical or commercial know-how, specifications, inventions, processes or initiatives which are of a confidential nature and have been disclosed to the Receiving Party by the other party ("Disclosing Party"), its employees, agents or subcontractors, and any other confidential information concerning the Disclosing Party's business, its products and services which the Receiving Party may obtain. The Receiving Party shall only disclose such confidential information to those of its employees, agents and subcontractors who need to know it for the purpose of discharging the Receiving Party's obligations under the Contract, and shall ensure that such employees, agents and subcontractors comply with the obligations set out in this Condition as though they were a party to the Contract. The Receiving Party may also disclose such of the Disclosing Party's confidential information as is required to be disclosed by law, any governmental or regulatory authority or by a court of competent jurisdiction.
18.2All intellectual property rights (i) in or relating to Goods designed, created or otherwise developed pursuant to the Contract or (ii) created, developed or otherwise arising from the performance of Services pursuant to the Contract, in each case throughout the world (including, without limitation, patents, copyrights, design rights, registered designs, trade marks, service marks and know-how and the rights to apply for any of the foregoing) (the "Intellectual Property Rights") shall belong to the Buyer absolutely. The Seller hereby assigns the Intellectual Property Rights to the Buyer with the intent that upon the making or creation thereof the Intellectual Property Rights shall automatically vest in the Buyer.
18.3The Seller shall at the Buyer's request (and notwithstanding the termination or expiry of the Contract) sign and execute and procure the signature and execution of all such documents and do all such acts as the Buyer may reasonably require to vest the legal title in, apply for, obtain and maintain in force in the Buyer' sole name (unless it otherwise directs) the Intellectual Property Rights.
18.4This Condition 18 survives the expiry or earlier termination of the Contract.

19.NOTICES
19.1Any notice or other communication given to a party under or in connection with the Contract shall be in writing, addressed to that party at its registered office (if it is a company) or its principal place of business (in any other case) or such other address as that party may have specified to the other party in writing in accordance with this Condition, and shall be delivered by hand or sent (by courier, first class recorded or registered post).
19.2Any notice or other information given by post under paragraph 19.1 which is not returned to the sender as undelivered shall be deemed to have been given 5 business days after the envelope containing the same was so posted; and proof that the envelope containing any such notice or information was properly addressed, pre-paid, recorded or registered and posted, and that it has not been so returned to the sender, shall be sufficient evidence that such notice or information has been duly given.

20.LAW OF CONTRACT
The Contract shall in all respects be governed by and construed in accordance with English Law and the parties agree to submit to the non-exclusive jurisdiction of the Courts of England. This Condition 20 survives the expiry or earlier termination of the Contract